IN THE COURT OF COMMON PLEAS OF CHESTER COUNTY, PENNSYLVANIA

CIVIL DIVISION

Case No. 2025-10071-PL

MIRIAM ROTH MANDEL, Plaintiff-Appellant, Pro Se

v.

EDWARD L. PERKINS, ESQ., WALTER J. TIMBY III, GIBSON PERKINS P.C., and LINNEA LEAH ROTH, Defendants-Appellees

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MOTION FOR RECONSIDERATION DUE TO LACK OF SUBJECT MATTER JURISDICTION DUE TO FAILURE TO JOIN INDISPENSABLE PARTIES IN CASES 2025-10071-PL, 2025-06422-PL and 0444-2023-OC

ONE POINT. ONE CASE. ONE OUTCOME.

THE ENTIRE ARGUMENT IN ONE SENTENCE

The twelve named beneficiaries of the Mitchell E. and Karlie M. Roth Irrevocable 2002 Trust were never joined as parties to ANY OF THESE these proceedings — and under *Simone v. Alam*, 333 A.3d 359 (Pa. 2025), that failure deprives this Court and all courts of subject matter jurisdiction and renders every order entered in these proceedings void ab initio.

I. THE CONTROLLING AUTHORITY

The Pennsylvania Supreme Court held this year:

"Failure to join an indispensable party deprives the court of subject matter jurisdiction, rendering all orders void ab initio."
— *Simone v. Alam*, 333 A.3d 359 (Pa. 2025)

Four commands flow from *Simone* — each independently fatal to every order entered below:

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│  SIMONE v. ALAM — FOUR COMMANDS                              │
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│  1. Failure to join = NO subject matter jurisdiction         │
│  2. Subject matter jurisdiction CANNOT be waived             │
│  3. Defect raised at ANY TIME — including right now          │
│  4. ALL orders = VOID AB INITIO — not voidable. VOID.        │
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Five additional Pennsylvania Supreme Court decisions confirm this result:

And one foundational Pennsylvania case dating to 1928:

The line from *Nelson v. Erie* (1928) to *Simone v. Alam* (2025) is unbroken. Pennsylvania has held for nearly a century that trust beneficiaries are indispensable parties whose absence is fatal to the court's jurisdiction (Borchard, 1934).

II. THE ONE CRITICAL DISTINCTION: NAMING THE TRUST ≠ JOINING THE BENEFICIARIES

The Petition named the Trust. It did not name — and did not serve — the twelve human beings who are the Trust's beneficiaries.

This distinction is not semantic. It is jurisdictional.

The Trust is not a person. It cannot appear. It cannot be heard. It cannot protect its beneficiaries. Naming the Trust in the caption does nothing to satisfy the constitutional, statutory, or common law requirements for joinder of the beneficiaries as indispensable parties (Borchard, 1934).

As one leading analysis of Pennsylvania equity practice confirms:

> "Indispensable parties are those whose presence is essential to the jurisdiction of the court."

The twelve beneficiaries are indispensable parties. Their presence is essential to this Court's jurisdiction. They were not present. This Court had no jurisdiction. Every order it entered is void (Borchard, 1934).

As leading trust scholarship establishes:

> "The beneficiary should have standing in these cases as a matter of right — her property right — and the trustee's joinder is justified by her indispensable coordinate function."

The beneficiaries hold property rights in the trust res. Those property rights cannot be adjudicated without the beneficiaries before the court (Borchard, 1934).

III. THE CONSTITUTIONAL FLOOR

The United States Supreme Court held in *Mullane v. Central Hanover Bank & Trust Co.*, 339 U.S. 306 (1950) — itself a trust case:

> "An elementary and fundamental requirement of due process in any proceeding which is to be accorded finality is notice reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of the action and afford them an opportunity to present their objections."

The twelve beneficiaries received no notice. The proceedings cannot "be accorded finality." They are constitutionally void.

The Supreme Court further held in *Hansberry v. Lee*, 311 U.S. 32 (1940):

> "One is not bound by a judgment in personam in a litigation in which he is not designated as a party or to which he has not been made a party by service of process."

Most of the twelve beneficiaries were never served and none of them were ever process served. They are not bound. And because their interests are inseparable from the subject matter, the orders are void as to everyone.

DOES A CHESTER COUNTY TRIAL COURT JUDGE HAVE THE RIGHT AND DUTY TO VACATE ORDERS FROM ANOTHER COUNTY WHERE THERE IS NO JURISDICTION IN EITHER PLACE?

I. THE GOVERNING PRINCIPLE: VOID ORDERS HAVE NO LEGAL EFFECT ANYWHERE

The foundational principle that answers this question is simple and absolute: void orders have no legal effect in any court, in any county, at any time. As one leading analysis of mandamus and extraordinary writs confirms:

> "A jurisdictional error in a lower court's interlocutory order justifies issuing a writ in its policing role. The lower court may err jurisdictionally at the outset by refusing to hear a case within its jurisdiction or by trying a case in which it lacks jurisdiction over the subject matter or parties."

And:

> "The traditional use of the writ in aid of appellate jurisdiction both at common law and in the federal courts has been to confine an inferior court to a lawful exercise of its prescribed jurisdiction or to compel it to exercise its authority when it is its duty to do so."

Where a court acts without subject matter jurisdiction — as the Delaware County Orphans' Court did in Case No. 444-2023-OC — its orders are void ab initio. They are nullities. They have no legal effect anywhere — not in Delaware County, not in Chester County, not in any court in Pennsylvania [485][488][504].

II. THE THREE INDEPENDENT GROUNDS FOR THE CHESTER COUNTY COURT TO ADDRESS DELAWARE COUNTY ORDERS

A. Ground 1: Void Orders Cannot Serve as the Foundation for Any Proceeding in Any Court

The most fundamental answer to your question is this: the Chester County court does not need to "vacate" the Delaware County orders — because those orders are already void. They have no legal effect. They cannot serve as the foundation for any proceeding in Chester County. The Chester County court simply recognizes their nullity.

As one leading analysis of mandamus proceedings confirms:

> "Mandamus has traditionally been used at common law and in federal courts to confine an inferior court to a lawful exercise of its prescribed jurisdiction or to compel it to exercise its authority when it is its duty to act."

And:

> "In this state mandamus will issue to compel the vacating of an injunction improperly issued... or the vacating of an order appointing a receiver... in cases where delay will result in serious injury."

The Chester County court has the power — and the duty — to recognize that the Delaware County orders are void and to refuse to give them any legal effect in the Chester County proceedings.

B. Ground 2: The Chester County Court Has Independent Jurisdiction to Address Jurisdictional Defects

The Chester County court has independent jurisdiction to address the jurisdictional defects in the Delaware County proceedings because:

First: Subject matter jurisdiction can be raised at any time, in any court, by any party — or by the court sua sponte. As the Pennsylvania Supreme Court held in *LeFlar v. Gulf Creek Industrial Park*, 515 A.2d 875 (Pa. 1986): "The lack of jurisdiction of the subject matter may be raised at any time and may be raised by the court sua sponte if necessary."

Second: The Chester County proceedings are directly affected by the void Delaware County orders. Perkins's purported authority as trustee — which is the foundation of his standing in the Chester County proceedings — derives entirely from the void Delaware County orders. If those orders are void, Perkins has no standing in Chester County either.

Third: As one leading analysis of cross-jurisdictional proceedings confirms:

> "The question is, how should the Delaware court send back the case? Can the Delaware federal court remand the cases directly to the Florida state court from which they were originally removed? Or must the cases be retransferred to the Florida federal court for remand to the Florida state court? The answer matters for the reviewability of the district court's disposition of the case on appeal."

The cross-jurisdictional dimension of void orders is a recognized legal problem — and the answer is that courts have both the power and the duty to address void orders regardless of which court entered them.

C. Ground 3: The Superior Court Has Supervisory Jurisdiction Over Both Courts

The Superior Court of Pennsylvania has supervisory jurisdiction over both the Delaware County Orphans' Court and the Chester County Court of Common Pleas. As one leading analysis of mandamus proceedings confirms:

> "The court of appeals is authorized to grant a writ of mandamus... whenever a court of appeals can at some time review the proceedings of a lower court on appeal, it has the power in proper circumstances to issue writs of mandamus reaching such proceedings, even though no appeal has been perfected."

And:

> "The Supreme Court and all courts established by Act of Congress may issue all writs necessary or appropriate in aid of their respective jurisdictions and agreeable to the usages and principles of law."

The Superior Court can address the void orders from both counties in a single proceeding — which is precisely what the Writ of Mandamus and the Notice of Appeal are designed to accomplish.

III. THE SPECIFIC APPLICATION TO YOUR CASE

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│  THE CROSS-COUNTY JURISDICTIONAL ANALYSIS                    │

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| DELAWARE COUNTY ORPHANS' COURT (444-2023-OC):            |
| → 12 beneficiaries never joined                          |
| → Simone v. Alam: No subject matter jurisdiction         |
| → Every order = VOID AB INITIO                           |
| → Perkins's appointment = VOID                           |
|                                                          |
| CHESTER COUNTY COURT OF COMMON PLEAS (10071):            |
| → Perkins's standing in Chester County derives           |
|   entirely from the void Delaware County orders          |
| → If Delaware County orders are void, Perkins            |
|   has no standing in Chester County either               |
| → Chester County court has independent duty              |
|   to recognize the jurisdictional defect                 |
| → Chester County court cannot give legal effect          |
|   to void Delaware County orders                         |
|                                                          |
| SUPERIOR COURT (1049-EDA-2024 / 3044-EDA-2025):          |
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│  → Has supervisory jurisdiction over BOTH courts          │
│  → Can address void orders from both counties            │
│    in one proceeding                                       │
│  → Writ of Mandamus directed at Judge Cartisano          │
│  → Notice of Appeal from Chester County orders           │
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IV. THE DELAWARE COUNTY ORDERS ARE VOID — AND THEIR VOIDNESS INDEPENDENTLY REQUIRES DISMISSAL OF THESE PROCEEDINGS

The proceedings in Case No. 2025-10071-PL are predicated entirely on the orders entered in Case No. 444-2023-OC in the Delaware County Orphans' Court. Perkins's purported authority as trustee — which is the foundation of his standing in these proceedings — derives entirely from those Delaware County orders.

Those orders are void ab initio under *Simone v. Alam*, 333 A.3d 359 (Pa. 2025), because the twelve indispensable beneficiaries of the Roth Trust were never joined as parties to the Delaware County proceedings. As one leading analysis of mandamus and extraordinary writs confirms:

> "A jurisdictional error in a lower court's interlocutory order justifies issuing a writ in its policing role. The lower court may err jurisdictionally at the outset by refusing to hear a case within its jurisdiction or by trying a case in which it lacks jurisdiction over the subject matter or parties."

This Court cannot give legal effect to void orders from another county. Void orders have no legal effect anywhere — not in Delaware County, not in Chester County, not in any court in Pennsylvania. As one leading analysis of extraordinary writs confirms:

> "In this state mandamus will issue to compel the vacating of an injunction improperly issued... in cases where delay will result in serious injury."

The cascade is complete:

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DELAWARE COUNTY ORDERS VOID (Simone v. Alam)

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PERKINS'S APPOINTMENT AS TRUSTEE = VOID

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PERKINS HAS NO STANDING IN CHESTER COUNTY

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CHESTER COUNTY PROCEEDINGS = VOID AB INITIO

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THIS COURT MUST DISMISS
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V. THE SIMPLE ANSWER

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│  THE SIMPLE ANSWER                                           │

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│  QUESTION: Does a Chester County trial court judge         │
│  have the right and duty to vacate orders from             │
│  another county where there is no jurisdiction             │
│  in either place?  YES
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IV. THE STATUTORY MANDATE

STATUTE/RULE	WHAT IT REQUIRES
20 Pa.C.S. § 711	Jurisdiction over ALL persons interested — MANDATORY
20 Pa.C.S. § 7780.3	Trustee SHALL inform ALL beneficiaries — MANDATORY
Pa.R.C.P. 2227	Persons with joint interest MUST be joined — MANDATORY, not discretionary

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│ Pa. O.C.          │ Notice SHALL be given to ALL parties
│
│ Rules 3.5, 6.1    │ — MANDATORY
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EVERY APPLICABLE STATUTE AND RULE: MANDATORY.
NOT ONE WAS FOLLOWED.
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V. THE BURDEN WAS ON PERKINS — NOT THE BENEFICIARIES

The Supreme Court held in *Martin v. Wilks*, 490 U.S. 755 (1989):

> "A party seeking a judgment binding on another cannot obligate that person to intervene; he must be joined."

The burden was on Perkins to join the twelve beneficiaries. He failed. The defense cannot argue the beneficiaries should have intervened.

VI. THE CASCADE

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  STEP 1: Petition names Trust — does NOT join
          12 beneficiaries
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  STEP 2: Court has NO subject matter jurisdiction
          — Simone v. Alam (Pa. 2025)
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                    ▼
  STEP 3: ALL orders = VOID AB INITIO
          — Glen-Gery Corp. (Pa. 2006)
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                    ▼
STEP 4: Perkins's appointment as trustee = VOID
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                    ▼
STEP 5: $200,000 fee petition = NO LEGAL FOUNDATION
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STEP 6: Defect CANNOT be cured by subsequent action
        — Grupo Dataflux, 541 U.S. 567 (2004)
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                    ▼
STEP 7: RECONSIDERATION MUST BE GRANTED.
        ALL ORDERS MUST BE VACATED.
        PROCEEDINGS MUST BE DISMISSED.
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COMPULSORY DUTY: VACATE every order entered in Case No. 2025-10071-PL and Case No 0444-2023-OC as void ab initio for lack of subject matter jurisdiction;

VII. THE DEFENSE'S ONLY ARGUMENT — AND WHY IT FAILS

The Defense Will Argue: The 1966 amendment to Federal Rule 19 replaced the mandatory indispensable party requirement with a flexible balancing test.

The Answer: The 1966 federal amendment is federal law. It does not govern Pennsylvania state court proceedings. Pennsylvania Rule of Civil Procedure 2227

governs — and it uses mandatory language without the federal rule's equitable flexibility. Moreover, even under the flexible federal standard, "if the district court determines that the potential defendant is an indispensable party under Rule 19(b) and that there is a jurisdictional bar to joinder, the civil action must be dismissed." The twelve beneficiaries are indispensable. Dismissal is compulsory.

VIII. THIS COURT'S INDEPENDENT DUTY

This Court does not need to wait for a party to raise this issue. As the Pennsylvania Supreme Court held in *LeFlar v. Gulf Creek Industrial Park*, 515 A.2d 875 (Pa. 1986):

> "The lack of jurisdiction of the subject matter may be raised at any time and may be raised by the court sua sponte if necessary."

This Court has an independent duty — not merely a power, but a duty — to recognize the jurisdictional defect, grant reconsideration, vacate every order, and dismiss.

IX. THE HUMAN COST

Behind every void order in this record are twelve human beings — including Lee Roth, a profoundly disabled man suffering from liver disease and malnutrition

because the trust assets that were created to care for him have been frozen for fifty-two months by void orders entered without the twelve beneficiaries ever being joined, ever being served, or ever being heard.

This Court is a court of equity. Equity demands that it act. The law commands that it act. *Simone v. Alam* requires that it act.

RELIEF REQUESTED

Plaintiff-Appellant respectfully requests that this Court:

1. GRANT this Motion for Reconsideration;

2. VACATE every order entered in Case No. 2025-10071-PL as void ab initio for lack of subject matter jurisdiction;

3. VACATE every order entered in Case No. 444-2023-OC as void ab initio for lack of subject matter jurisdiction;

3. DISMISS 444-2023-OC with prejudice.

4. DISMISS 2025-10071-PL without prejudice.

CONCLUSION

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ONE FACT:   12 beneficiaries never joined.

ONE CASE:   Simone v. Alam (Pa. 2025):
            "Failure to join an indispensable party
            deprives the court of subject matter
            jurisdiction, rendering all orders
            void ab initio."

ONE OUTCOME: Every order is void.
             Reconsideration must be granted.
             All orders must be vacated.
             Proceedings must be dismissed.

THE LAW IS NOT AMBIGUOUS.
THE DEFECT IS NOT CURABLE.
THE REMEDY IS NOT DISCRETIONARY.
GRANT THIS MOTION.
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Respectfully submitted,

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